



File No.: EXP202304680

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant), on February 21, 2023, filed a complaint with the Spanish Agency for Data Protection, directed against the AYUNTAMIENTO DE ALGUAZAS, with NIF P3000700I (hereinafter, the complained party) and based on the following reasons:

It is stated that ***POSITION.1 associated phone numbers of minors with a WhatsApp group, without the express consent of their parents. It is claimed that the aforementioned data was collected from educational centers in the municipality of Alguazas, violating data protection regulations.

Along with the complaint, a report filed on January 16, 2023, with the General Directorate of Educational Centers and Infrastructures and a document submitted to the Ayuntamiento de Alguazas on January 20, 2023, is provided, in which the facts are presented, and the deletion of the obtained database is requested.

Additionally, there is a report issued on February 13, 2023, by the Data Protection Delegation for Educational Centers of the Ministry of Education, Vocational Training, and Employment, having been informed of the complaint filed by the complainant.

With the available information, it is considered:

- That, in this case, through the inquiry actions carried out by the Data Protection Delegation, it has been learned that, initially, the data of a minor's mobile phone was introduced into a social network group, but that, immediately afterward, the WhatsApp group disappeared.
- That the data used in this broadcast list has been provided by students through the various registration methods that the Education Department of the Ayuntamiento de Alguazas devised to promote the Youth Olympics of Alguazas.
- That there has been no transfer of data by any of the educational centers involved in this complaint, but rather, they have only provided the facilities of those centers so that their students could be informed about sports activities organized by the Municipal Corporation.
- That, therefore, the Educational Administration has not committed any infringement of the current legislation on the protection of personal data, and it can be demonstrated, moreover, in this case, that the principle of proactive responsibility, on which the new legislative framework in this matter is based, has been fulfilled accurately.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by electronic notification, was received on April 18, 2023, as stated in the certificate in the file. No response has been received to this transfer document.

THIRD: On May 21, 2023, in accordance with Article 65 of the LOPDGDD, the admission for processing of the complaint filed by the complainant was communicated.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following aspects:

On August 4, 2023, the complained party responded to the request of July 25, 2023, from this Agency: "The Ayuntamiento de Alguazas organizes an annual sports competition between two educational

centers; for this, young people who wish to participate were required to register in lists broken down by sports categories, to know how many would attend each sporting event."

"Additionally, a QR code was provided so that anyone who wished could voluntarily access a WhatsApp community to receive information and schedules of the sporting events. This community is restricted so that only one phone number can write, and at no time could users interact in it."

Regarding the Purpose of the Processing: "In the registration sheets, only the following data was collected: name (without specifying it completely), age, sex, phone number, and sports modalities in which they participated. The use of the data is purely organizational to anticipate the number of participants by sex and age category in each sports modality."

As for the Legal Basis of the processing according to Article 6.1. of the GDPR, it responds: "At no time has any processing of the provided data been carried out, since..."

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that only the number of registered participants, broken down by age and sex, for each sports modality has been leaked. And, regarding the WhatsApp group, no data processing has been carried out by this City Council, since the young people have accessed the community freely and voluntarily to stay informed (only those who wished to do so)."

On how the data of minors was obtained: "A link was disseminated on social media for young people who wish to register, as well as the young people themselves in educational centers completed paper registrations to submit them to the Youth Department."

It is communicated that the City Council of Alguazas does not have a delegate or person responsible for data protection.

On August 24, 2023, the claimant was requested to provide additional information, to which no response has been received from them.

On September 8, 2023, a response was received from the City Council of Alguazas to the second request dated August 24, 2023, from this Agency.

Attached is the registration form for the II YOUTH OLYMPIC GAMES, the complete content on official paper with the logo of the City Council of Alguazas, was:

"Logo Info Joven Alguazas, REGISTRATION FORM
II YOUTH OLYMPIC GAMES.

Between January and February 2023, we will celebrate the Youth Olympic Games of Alguazas again, in its second edition, in which young people from IES Villa de Alguazas and CES Vega Media can participate in various sports modalities.

Name and surname,

Age,

T-shirt size: XS S M L XL XXL,

Select your team:

- CES Vega Media

- IES Villa de Alguazas.

Select the sports you want to participate in (you can choose as many as you wish):" (list of 26 sports).

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"- I ACCEPT to receive communications via WhatsApp from the Youth Department of the City Council of Alguazas to receive information about activities, courses, or other matters of youth interest

- I REQUEST to register and participate in the Youth Olympic Games of Alguazas 2023.

SCAN THIS QR CODE TO JOIN THE WHATSAPP GROUP TO STAY INFORMED ABOUT THE COMPETITIONS

QR Code to join the II Y.O.G. 2023 group."

The registration form does not provide the option to check or uncheck the option to receive communications.

In Annex II of the response, the respondent sends a screenshot of the WhatsApp group indicated by the QR, which shows that it was created on 11/20/2022 and contains only 2 participants: ***USER.1 and Info Joven Alguazas, both administrators of the group. The respondent claims that the WhatsApp group was restricted and only the administrator could send information.

The respondent states that the registration form did not provide information about the processing of personal data when the information is obtained from the interested party.

They state that the City Council no longer physically retains the registration documents because they were destroyed after being transferred to an Excel file that allowed counting the registered participants in each sports modality. They point out that no one has access to this data, nor do they consider it to be sensitive personal data.

They attach an image of the information disseminated on Instagram: "II YOUTH OLYMPIC GAMES Alguazas, from January to February 2023, IES VILLA DE ALGUAZAS VS CES VEGA MEDIA," some of the sports, "more information at www.juventud.alguazas.es" and a QR code that points to an information entry from the City Council about the II Youth Games 2023.

The registration form does not include a consent box regarding information society services, nor does it differentiate between those over and under 14 years of age, nor does it include any consent for legal guardians in the case of those under 14.

In the diligence signed by the inspector, dated November 23, 2023, another registration form can be seen (<https://juventud.alguazas.es/events/nuevo-grupo-de-jovenes-para-el-curso-2023-2024/>) in the youth group for the 2023-2024 course.

A registration form is provided for a WhatsApp group "for ages between 13 and 16 years," with the fields Name * Surname * Phone * Age *, with two pre-checked boxes:

"I accept to receive communications via WhatsApp from the Youth Department to receive information about activities, courses, or other matters of youth interest, as well as to be included in WhatsApp groups.

I request to register in the youth group for the 2023/2024 course to participate in the activities that take place."

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In the proceeding of October 13, 2023, corresponding to the content of:

<https://juventud.alguazas.es/damos-inicio-a-los-ii-juegos-olimpicos-congregando-mas-de-700-jovenes/> it is noted that the number of participants in the games is greater than 700.

On October 26, 2023, a response was received to the request dated September 14 from this Agency, which includes screenshots of the configuration of the WhatsApp group where:

- It can be seen that only the administrators can edit the group settings and send messages.
- Dates and messages sent to the group are not visible.
- The administrator "Info Joven Alguazas" is identified with the phone number ***TELÉFONO.1 which corresponds to the ***PUESTO.2, B.B.B.. It is stated that this group is managed directly by the administrative staff of the Department of Sports.
- It is declared that the City Council of Alguazas does not have information about the members of the group on the date of the Olympic Games, as registrations were made voluntarily and, following the complaint filed by ***PARTIDO.1 of the municipality of Alguazas, users were removed from it.
- An Excel file is attached with 351 registered individuals: the majority are minors and some adults between 24 and 34 years old. Specifically, there are 137 young people aged 12 and 13 years. The included fields are: COURSE, Name and Surname, Gender, Age, Size, team, and 26 sports competitions, medals, and participations.
- It is stated that the attached Excel files are stored solely and exclusively on the personal laptop of ***PUESTO.3, responsible for the management and organization of the events. The only use of these Excel files was to organize the competitions, know how many participants, from which centers, and what age categories would participate in each sporting event. It was also necessary to know the size of

each participant, as a t-shirt was given to each of them for the tournaments.

On November 7, 2023, the document “Medallero II Juegos Juveniles.pdf” obtained from the page ***URL.1 is incorporated into the file, showing images of young people along with their names after the medal ceremony, at the Olympic Games of Alguazas, without any information regarding the publication of images in the registration, nor any request for consent to publish them.

On December 13, 2023, the phone number ***TELÉFONO.2 is used to join the WhatsApp group: “II JJ.OO. 2023” through the QR code sent by the City Council of Alguazas in its response of September 8, 2023. The proceeding of December 13, 2023, evidences that anyone with access to the QR code can join the group and see the phone numbers of the participants, as well as the name and “info” that each user publishes in that application.

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FOURTH: On June 26, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, for the alleged infringement of Article 6.1, Article 7, Article 37, and Article 13 of the GDPR, classified under Article 83.5, letters a) - in the case of Article 6 and 7 - and b) - in the case of Article 13 - of the GDPR and Article 83.4 a) of the GDPR in the case of Article 37.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the accused party submitted, on July 11, 2024, a written statement of allegations in which, in summary, it stated that “the data protection team has been and is collecting all documentation and proactive actions to implement the technical and organizational measures regarding the file in question”:

1.

Infringement of Art. 6.1 of the GDPR, “registration of data of minors in the WhatsApp group created by the City Council without having demonstrated that such data processing can be based on one of the lawful grounds contemplated in the aforementioned Article 6.1 of the GDPR.”

The processing has been canceled in the Excel file, so as of the date, there is no personal data of boys/girls regarding the II JJ. OO 2022-2023 group.

The phone ***TELÉFONO.1 manages the municipal WhatsApp corresponding to youth, where information related to data protection has been incorporated (Annex II).

Regarding the forms, reference is made in the following points.

1.

Infringement of Art. 6.1 of the GDPR, “processing of personal data of minors in the registration form, without having demonstrated that such data processing can be based on one of the lawful grounds contemplated in the aforementioned Article 6.1 of the GDPR.”

The following changes have been implemented on the youth website:

<https://juventud.alguazas.es/espacio-ocio-joven/>

a. The checks in the forms have been unchecked.

b. A point has been included: “Are you under 14 years old? Talk to your mother and father to consult how you can create an account.” Only minors under 14 years old will be registered with parental or legal guardian authorization.

c. In the forms, by application of the principle of minimization, Art. 5.1.c, the DNI/NIE data previously included has been removed.

d. The checks remain:

“I accept to receive communications via WhatsApp from the Youth Department to receive information about activities, courses, or other matters of youth interest.”

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Yes

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I have read and accept the privacy policy

e. The "Privacy Policy" of the youth website has been updated.

The specified changes apply to all forms on the youth website of the Alguazas City Council. (Annex IV) Regarding the other images that appear on the youth website (which remain on the website), it is indicated that they are part of various sports and cultural events, including ERASMUS, and in which the legal basis is Article 6.1.e, "the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller."

The Alguazas City Council considers that the information about the activities carried out in these events and/or activities are newsworthy facts in which the existence of a public interest is manifested in order to make them known to the community, therefore applying the provisions of Article 20.1.a) and d) of the Spanish Constitution which regulates freedom of expression and information.

1.

Violation of Art. 6.1 of the GDPR, "publication of images of young people on the City Council's website without having demonstrated that such data processing can be based on one of the lawful bases provided for in the aforementioned Article 6.1 of the GDPR."

The website where the images of young people appeared has been removed ***URL.1.

2.

Violation of Art. 7 of the GDPR "to publish or disseminate the image of minors, the consent of parents or guardians is required if under 14 years old and, in any case, if over 14, the consent of the minor." Protocols have been established for the processing of data of young people from the locality of Alguazas in the youth department, through forms that request both parental/guardian authorization for the processing of images of young people under 14 years old, as well as the consent of these when they are over 14 years old. This is included in Annex I.

3.

Violation of Article 13 of the GDPR "Information that must be provided when personal data is obtained from the data subject."

The forms have been updated, both on the website and the corresponding physical forms.

At the same time, the "Privacy Policy" has been included on the website

<https://alguazas.es/politica-de-privacidad/>, as well as the one corresponding to youth.

All of this, to comply with the principles related to processing, the lawfulness of processing, the conditions for consent, and the principle of information – transparency, has been executed with an intelligible formulation and easy access that employs clear and simple language, and does not contain abusive clauses. Annexes I and IV.

4.

Violation of Article 37 of the GDPR "designation of the data protection officer in sections 3 and 5 of Article 37 of the GDPR."

The Alguazas City Council, in compliance with Article 37, has designated a data protection officer considering their professional qualities and, in particular, their specialized knowledge of law and practice in data protection and their ability to perform the functions indicated in Article 39.6.

The data protection officer performs their functions within the framework of a service contract, since the date 5/12/2023 by decree of the Mayor-Presidency number 1407/2023, and registered on 14/12/2023 in the Registry of the Spanish Agency for Data Protection (Annex III).

Since their appointment, they have focused on their functions of "informing and advising," as well as supervising compliance with data protection regulations in the Alguazas City Council in relation to local regulations, as well as awareness-raising tasks.

Among the aspects that have been implemented as of the present date, it indicates:

- Registration of the Data Protection Officer in the AEPD registry.
- Publication of the RAT (Registry of Processing Activities) in the area of municipal transparency: <https://alguazas.sedelectronica.es/transparency/5a5bdbf9-e869-4e9b-911c59ebef64655e/>
- Drafting and publication of the "Privacy Policy" and "Legal Notice" on the municipal website, youth, and sports.
- Training for the social services area.
- Reports corresponding to: "REPORT ON ACCESS TO MUNICIPAL INFORMATION BY COUNCILORS AND DATA PROTECTION." from the perspective of personal data protection regulations, local regulations, and jurisprudence. In a second version, it expands to access by members of the Local Corporation to the E/S Registry, legitimization for access to special categories of personal data. Legitimization for access to the document management platform.
- Support to departments that have requested their information and advice regarding the principles of data protection regulations.
- Review and update of the various forms for the collection and processing of personal data.

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SIXTH: On October 23, 2024, a resolution proposal was made, proposing the following:

That the Director of the Spanish Agency for Data Protection impose on the AYUNTAMIENTO DE ALGUAZAS, with NIF P3000700I,

- for the infringement of Article 6.1 of the GDPR, classified according to the provisions of Article 83.5 of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. b) of the LOPDGDD, declaration of infringement. This is due to the registration of minors' data in the WhatsApp group created by the Ayuntamiento without having demonstrated that such data processing can be based on one of the lawful bases contemplated in the aforementioned Article 6.1 of the GDPR.
- for the infringement of Article 6.1 of the GDPR, classified according to the provisions of Article 83.5 of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. b) of the LOPDGDD, declaration of infringement. This is due to the processing of personal data of minors under 14 years of age in the registration form, without having demonstrated that such data processing can be based on one of the lawful bases contemplated in the aforementioned Article 6.1 of the GDPR.
- for the infringement of Article 6.1 of the GDPR, classified according to the provisions of Article 83.5 of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. b) of the LOPDGDD, declaration of infringement. This is due to the publication of images of young people on the Ayuntamiento's website without having demonstrated that such data processing can be based on one of the lawful bases contemplated in the aforementioned Article 6.1 of the GDPR.
- for the infringement of Article 7 of the GDPR, classified according to the provisions of Article 83.5 of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. c) of the LOPDGDD, declaration of infringement.
- for the infringement of Article 13 of the GDPR, classified according to the provisions of Article 83.5 of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. h) of the LOPDGDD, declaration of infringement.
- for the infringement of Article 37 of the GDPR, classified according to the provisions of Article 83.4 of the GDPR, qualified as serious for the purposes of prescription in Article 73 v) of the LOPDGDD, declaration of infringement.

SEVENTH: The aforementioned resolution proposal was notified in accordance with the rules established in the LPACAP, and on October 29, 2024, a written statement of allegations from the summoned party was received.

In this written statement of allegations, the summoned party indicates that the actions and measures implemented are not being evaluated, continuing to state that, in the indicated allegations, there is no intention to reverse those prior actions which cannot be reversed, nor do we intend to annul them. Rather, we aim to proactively guide the Ayuntamiento de Alguazas towards compliance with the

current regulations, which undoubtedly involves the adoption of technical and organizational measures that mitigate the situations subject to inspection and demonstrate that active measures are being taken, such as: (followed by a list of measures adopted by the Ayuntamiento up to the date of the mentioned written statement)

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: It is recorded that the Ayuntamiento de Alguazas organized a sports competition among the youth of the two institutes in the municipality called: II Juegos Olímpicos de Alguazas. For this purpose, interested students were provided with forms requesting: name, surname, age, t-shirt size, team, and sports in which to participate (it is not recorded whether the fields were mandatory or optional).

The same form included a QR code so that anyone who wished could access a WhatsApp community to receive information and schedules for the sporting events.

SECOND: The investigative actions carried out have confirmed the creation of the WhatsApp group on November 20, 2022, for which the mobile phone number of a minor was associated, without any authorization being demonstrated or recorded.

It has been evidenced that anyone with the link could join. In that group, only the administrators could send messages.

THIRD: The registration form did not discriminate between those over and under 14 years of age, nor did it include any consent for legal guardians in the case of minors under 14 years of age. It only informed that receiving communications via WhatsApp was accepted.

It is evident that registration in this WhatsApp group, although it did not allow sending messages, implied the visibility of the phone number of its participants.

FOURTH: On the website and social media of the Ayuntamiento, images of young people were displayed along with their names after the medal ceremony. This publication of images was not mentioned in the registration.

FIFTH: Following the investigative actions, the summoned party appointed a Data Protection Officer.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the entity being complained against, the following should be noted:

The entity being complained against alleges that its data protection team has been and is collecting all documentation and proactive actions aimed at implementing the technical and organizational measures regarding the file in question.

Upon analyzing the documentation, it should be emphasized that the General European Data Protection Regulation came into force in May 2016, although as established by its Article 99, it was applicable from May 25, 2018, marking the end of a two-year adaptation period. Therefore, the data controller has had a wide margin of time to adopt the necessary measures to comply with the current data protection regulations.

The proven facts in the procedure demonstrate the unlawfulness of the data processing carried out, as well as the need to adapt the processing operations it performs to said regulations.

In this regard, it is necessary to highlight that at the beginning of this sanctioning procedure, there was a breach of the current data protection regulations, which is evidenced by the actions now taken.

Thus, for example, according to the entity being complained against:

- o The processing of personal data of boys/girls related to group II JJ. OO 2022-2023 has been canceled in an Excel file, so as of the date, there is no personal data.
 - o Changes have been implemented on the youth website.
 - o The website where images of young people appeared has been removed.
 - o Protocols for the processing of data of young people from the locality of Alguazas have been established in the youth department, through forms where both parental/guardian authorization for the processing of images of young people under 14 years of age is requested, as well as the consent of these when they are over 14 years old.
 - o The forms have been updated, both on the website and the corresponding physical forms.
 - o A "Privacy Policy" has been included on the website.
 - o The City Council of Alguazas, in compliance with Article 37, has appointed a data protection officer.
- These actions have come in response to the initiation of the sanctioning procedure, rather than as part of a proactive risk management strategy.

Regarding the appointment of the Data Protection Officer, it should be noted that their appointment does not imply that there has been no violation of Article 37 of the GDPR during the entire time they were not appointed.

However, it should be noted regarding the new measures that have been adopted or are being worked on to strengthen compliance with data protection, that although they reflect positive conduct, they do not invalidate the established facts.

Consequently, the allegations must be dismissed, noting that the arguments presented do not invalidate the essential content of the infringement declared committed nor do they constitute sufficient justification or exculpation.

III

Allegations to the Proposal for Resolution

In response to the proposal for resolution, the entity being complained against insists that it has adopted measures and that, although it does not intend to reverse those actions prior to which it is not possible, nor do we intend to annul, it understands that these measures would proactively lead the City Council of Alguazas to a compliance environment in relation to the current regulations, and that undoubtedly involves the adoption of technical and organizational measures that mitigate the situations subject to inspection and demonstrate that active measures are being taken.

The measures indicated by the entity being complained against in its allegations to the proposal for resolution are specified as follows:

- ☐ Appointment of a Data Protection Officer (DPO).
- ☐ Preparation, updating, and publication of the Record of Processing Activities (RAT).
- ☐ Development of data protection policies and procedures.
- ☐ Definition of roles and responsibilities regarding privacy.
- ☐ Implementation of a security breach management procedure.
- ☐ Training and awareness.
- ☐ It should be evidenced that work is being done on training the staff:
- ☐ Data protection training programs for employees.
- ☐ Awareness campaigns on information security.
- ☐ Distribution of guides and manuals on best practices.

- Corrective Measures
- It is crucial to demonstrate that actions are being taken to correct the identified deficiencies:
- Remediation plan for identified non-compliances.
- Implementation of additional controls in risk areas.
- Review and update of contracts with suppliers.

As can be seen, in general terms, these measures have already been reported in the written allegations to the initiation proposal and, although, as we indicated in the resolution proposal, they undoubtedly deserve a positive assessment from this AEPD, they do not negate that the infringements have been committed and that, ultimately, the infringement attributable to the claimed party must be declared.

IV

Unfulfilled Obligation. Lawfulness of Processing.

The facts revealed in this complaint materialize in the organization by the City Council of Alguazas of a sports competition among the youth of the two institutes in the municipality. For this reason, the same registration form provided a QR code so that - anyone who wished - could access a WhatsApp community to receive information and schedules of the sporting events.

The investigative actions carried out have confirmed the creation of the WhatsApp group on November 20, 2022, to which the mobile phone number of minors was associated, without any authorization being accredited or recorded, which could imply a violation of the regulations on personal data protection.

Firstly, such processing could constitute an infringement of Article 6.1 of the GDPR, Lawfulness of Processing, which states:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the GDPR states that

“For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under the law of the Union or of the Member States to which this Regulation relates, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

Also, Article 4 of the GDPR, Definitions, in its paragraph 11, states:

“11) ‘consent of the data subject’: any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.” The claimed facts materialize in the publication of the image of the daughter of the claiming party, a minor, on the social network Facebook, without having authorization for this.

The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract to which the affected party is a party or for the application, at the request of this, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the affected party which require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the controller, to protect vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

In the investigative actions, there is an Excel file with 351 registered individuals: the majority minors and some adults between 24 and 34 years old. Specifically, there are 137 young people aged 12 and 13.

Regarding the consent of minors, Article 7 of the LOPDGDD establishes:

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“1. The processing of personal data of a minor shall only be based on their consent when they are over fourteen years of age. Exceptions are made in cases where the law requires the assistance of the holders of parental authority or guardianship for the execution of the act or legal transaction in which consent for processing is obtained.

2. The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship.”

And Article 92, Protection of minors' data on the Internet, of the LOPDGDD states:

“Educational centers and any natural or legal persons who carry out activities involving minors shall guarantee the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social network services or equivalent services, they must obtain the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law.”

From the aforementioned regulations, it is deduced that to publish or disseminate the image of minors, the consent of the parents or guardians is required if the minor is under 14 years of age and, in any case, if they are over 14, the consent of the minor is required.

In the analyzed case, the respondent has not proven or justified any legal basis that legitimizes the processing of the data of the enrolled minors, especially those under 14 years of age, for whom the consent of their father/mother/guardian is needed.

Therefore, it is considered that the conduct of the respondent violates the principle of lawfulness enshrined in Article 6.1 of the GDPR.

The lack of diligence displayed by the respondent in complying with the obligations imposed by personal data protection regulations is, therefore, evident. A diligent compliance with the principle of lawfulness in the processing of personal data requires that the processing is based on one of the grounds provided for in Article 6 of the GDPR, which, applied to the analyzed case, means that it must be able to prove that the data subject consented to the collection of their personal data or that the processing was based on a prevailing legitimate interest and exercise reasonable diligence essential to prove that aspect. Failing to act in this way would empty the principle of lawfulness of its content. Consequently, it is considered that the established facts constitute an infringement, attributable to the respondent, for violation of Article 6.1 of the GDPR.

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Classification and qualification of the infringement

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (EU) 2016/679.”

VI

Obligation not fulfilled. Lawfulness of processing.

Secondly, for the organization by the City Council of Alguazas of the sports competition, interested students, including those under 14 years of age, were asked to register through forms that requested: name, surname, age, t-shirt size, team, and sports in which they would participate, without proving or including any authorization, or in the case of those over 14 years of age, their consent, which could imply a violation of personal data protection regulations.

Such processing could constitute an infringement of Article 6.1 of the GDPR, Lawfulness of processing, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

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b) the processing is necessary for the performance of a contract in which the data subject is a party or for the application, at the request of the data subject, of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

The processing of personal data requires the existence of a legal basis that legitimizes it.

In this regard, the arguments previously mentioned regarding the need for a lawful basis to legitimize the processing are hereby reproduced.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, particularly when it is necessary for the performance of a contract in which the data subject is a party or for the application, at the request of the data subject, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of such data. The processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the data subject or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In the investigative proceedings, there is an Excel file with 351 registered individuals: the majority are minors and some adults between 24 and 34 years old. Specifically, there are 137 young people aged 12 and 13 years.

Regarding the consent of minors, Article 7 of the LOPDGDD states:

"1. The processing of personal data of a minor may only be based on their consent when they are over fourteen years of age.

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The exceptions are cases where the law requires the presence of the holders of parental authority or guardianship for the celebration of the act or legal transaction in which the consent for the processing is obtained.

2. The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

And Article 92, Protection of minors' data on the Internet, of the LOPDGDD provides that:

"Educational centers and any natural or legal persons that carry out activities involving minors shall guarantee the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social network services or equivalent services, they must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law."

From the aforementioned regulations, it is inferred that to publish or disseminate the image of minors, the consent of the parents or guardians is required if the minor is under 14 years old and, in any case, if they are over 14, the consent of the minor is required.

In the analyzed case, the respondent has not demonstrated or justified any legal basis that legitimizes the processing of data of minors under 14 years of age, since the registration form does not include a consent checkbox for legal guardians in the case of minors under 14 years old.

Therefore, it is considered that the conduct of the respondent violates the principle of lawfulness enshrined in Article 6.1 of the GDPR.

The lack of diligence displayed by the respondent in complying with the obligations imposed by personal data protection regulations is, therefore, evident. A diligent compliance with the principle of lawfulness in the processing of personal data requires that the processing be based on one of the causes provided for in Article 6 of the GDPR, which, in the context analyzed, means that it must be

able to demonstrate that the data subject consented to the collection of their personal data or that it was based on a prevailing legitimate interest and to exercise reasonable diligence essential to substantiate that point. Failing to act in this way would result in emptying the principle of lawfulness of its content.

Consequently, it is considered that the established facts constitute an infringement, attributable to the respondent, for violation of Article 6.1 of the GDPR.

VII

Classification and qualification of the infringement

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The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

VIII

Unfulfilled obligation. Lawfulness of processing.

Thirdly, in the investigative actions carried out by this authority, knowledge has been gained of the publication, on the page: ***URL.1, of images of these young individuals, along with their names, following the medal ceremony at the organized sporting event.

It should be noted that the image is considered personal data according to the definition of personal data provided by Article 4 of the GDPR and, as such, any processing of images of identified or identifiable persons must comply with the established requirements, obligations, and principles.

In this sense, to process any personal data, express consent from the data subject is required; therefore, to process (publish) the image of a person, we need their consent or that of their representative or guardian, or any other legitimizing cause under Article 6.1 of the GDPR.

The aforementioned article expressly states that processing "shall be lawful only if at least one of the following conditions is met:

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a) the data subject has given consent to the processing of their personal data for one or more specific

purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child."

Thus, the individual has the right to consent to the collection and use of their image, and it is also the responsibility of the data controller to ensure that the person from whom consent is requested actually gives it, so that such processing will only be legitimate if it is based on one of the legal grounds enumerated in Article 6.1 of the GDPR.

According to Article 4.11 of the GDPR, the consent of the data subject is: "any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them";

In relation to the consent of minors, Article 7 of the LOPDGDD establishes:

"1. The processing of personal data of a minor shall only be based on their consent when they are over fourteen years of age.

Exceptions are made in cases where the law requires the assistance of holders of parental authority or guardianship for the execution of the act or legal transaction in the context of which consent for processing is obtained.

2. The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

And Article 92, Protection of minors' data on the Internet, of the LOPDGDD provides that:

"Educational centers and any natural or legal persons that carry out activities in which minors participate shall guarantee the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

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When such publication or dissemination is to take place through social network services or equivalent services, it must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law."

From the aforementioned regulation, it is deduced that to publish or disseminate the image of minors, the consent of the parents or guardians is required if the minor is under 14 years old and, in any case, if the minor is over 14, the consent of the minor is required.

Consequently, it is considered that the established facts constitute an infringement, attributable to the party being claimed, for violation of Article 6.1 of the GDPR.

IX

Classification and Qualification of the Infringement

The cited infringement of Article 6.1 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting

for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

X

Unfulfilled Obligation. Conditions for Consent.

Article 4.11 of the GDPR defines the consent of the data subject as "any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify their agreement to the processing of personal data relating to them."

In this sense, Article 6.1 of the LOPDGDD understands consent as "any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify their agreement to the processing of personal data relating to them."

For its part, Article 7 "Conditions for Consent" of the GDPR establishes:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration which constitutes a breach of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

From the investigative actions carried out, it is confirmed that the registration form did not offer the possibility to check or uncheck the option to receive communications. As previously stated, the processing of personal data requires the existence of a legal basis that legitimizes it. When the basis for legitimacy is consent, if consent is to be obtained for different purposes, consent must be obtained for each of them and must be validly and expressly granted, providing the user with the option to give free and individualized consent.

Consequently, it is considered that the established facts constitute an infringement, attributable to the party being claimed, for violation of Article 7 of the GDPR.

XI

Classification of the Infringement of Article 7 of the GDPR

The cited infringement of Article 7 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations, Article 72.1 “Very Serious Offenses” of the LOPDGDD states:

“1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein, particularly the following:

(...)

c) The failure to comply with the requirements set forth in Article 7 of Regulation (EU) 2016/679 for the validity of consent.”

XII

Unfulfilled obligation. Information to be provided when personal data is obtained from the data subject Processing must be governed by the principles outlined in Article 5 of the GDPR, which states:

“Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (“lawfulness, fairness, and transparency”); (...).”

A manifestation of the principle of transparency is the obligation incumbent upon data controllers to inform, in the terms of Article 13 of the GDPR, the data subject when their personal data is obtained directly from them:

“1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of its representative;

a) the contact details of the data protection officer, where applicable;

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a) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

b) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

c) the recipients or categories of recipients of the personal data, where applicable;

d) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

a) the existence of the right to request from the controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

a) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to

withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

b) the right to lodge a complaint with a supervisory authority;

c) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

d) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the

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the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

In this regard, Recital 60 of the GDPR states that “The principles of lawful and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any supplementary information necessary to ensure lawful and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of not providing such data.”

The principle of transparency, linked to the principles of lawfulness and fairness (Article 5.1.a of the GDPR), specifically encompasses the duty of the controller to inform the affected parties about a series of issues, in the terms of Article 13 of the GDPR, previously cited. From the investigative actions carried out, it is inferred that the City Council, as the data controller, did not provide information in the registration forms regarding such processing, among other issues, about its purpose and its legal basis (Article 13.1.c of the GDPR).

Specifically, the data controller did not provide information about the processing of personal data to users when the information is obtained from the data subject, regarding the purpose of the processing, although it was to organize the sports competition, it does not explicitly state it as such, the legal basis is not established, nor does it acknowledge that there has been processing.

Moreover, according to Recital 58 of the GDPR “(...). Since children merit specific protection, any information and communication concerning their processing must be provided in clear and plain language that is easy to understand.”

Therefore, in relation to minors, the information provided to them must be specially adapted to their level of understanding.

Consequently, it is considered that the established facts constitute an infringement, attributable to the accused party, for violation of Article 13 of the GDPR.

XIII

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR which, under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the

preceding financial year, opting for the higher amount:

a) (...)

b) the rights of the data subjects under Articles 12 to 22;

(...)"

For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1.h of the LOPDGDD, which classifies the following conduct as very serious:

"h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

XIV

Unfulfilled obligation. Article 37 GDPR.

Public Administrations act as data controllers of personal data and, at times, perform functions of data processors as appropriate, following the principle of proactive responsibility, to meet the obligations detailed by the GDPR, among which is the appointment of a data protection officer, making their contact details public, and communicating it to the AEPD.

Paragraphs 1 and 7 of Article 37 of the GDPR refer to these obligations and establish, respectively:

"1. The controller and the processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;

(...)

7. The controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority."

Regarding the designation of the data protection officer, paragraphs 3 and 5 of Article 37 of the GDPR state:

"3. When the controller or the processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.

(...)

5. The data protection officer shall be designated based on their professional qualities and, in particular, their specialized knowledge.

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of the law and practice regarding data protection and their ability to perform the functions indicated in Article 39.

6. The data protection officer may be part of the staff of the data controller or the data processor or perform their functions within the framework of a service contract."

For its part, the LOPDGDD dedicates Article 34 to the "Appointment of a data protection officer," which states:

"1. The data controllers and processors must appoint a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 (...)

3. The data controllers and processors shall notify the Spanish Data Protection Agency or, where applicable, the regional data protection authorities, within ten days of the appointments, designations, and terminations of the data protection officers, both in cases where they are obliged to appoint one and in cases where it is voluntary."

In the file currently under review, there is a document dated August 4, 2023, signed by ***POSITION.1, informing the AEPD that, given the size of the City Council and its resources, the City Council of Alguazas does not have a data protection officer or data protection manager, and that this position is neither budgeted nor provided for in the staff structure or in the RPT.

It also informs that a process is underway to modify these planning and human resource management

instruments, intending to create, among other positions, that of data protection manager or officer. As indicated, the GDPR stipulates that the data controller and processor must appoint a DPO in cases where “the processing is carried out by a public authority or body,” and that “they shall publish the contact details of the data protection officer and communicate them to the supervisory authority.” Consequently, it is considered that the established facts constitute an infringement, attributable to the party being claimed, for violation of Article 37 of the GDPR, “Appointment of the data protection officer.”

XV

Classification and qualification of the infringement of Article 37 GDPR

The aforementioned infringement of Article 37 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements,” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a limitation period of two years:

v) The failure to comply with the obligation to appoint a data protection officer when the appointment is required in accordance with Article 37 of Regulation (EU) 2016/679 and Article 34 of this organic law.”

XVI

Sanction

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 states:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue

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Resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or correct the effects of the infringement that may have been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the data controller or processor, to the hierarchical body to which it is subordinate, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this

case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions related to the measures and actions referred to in the previous paragraphs must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the TOWN HALL OF ALGUAZAS, with NIF P3000700I,

- Has infringed the provisions of Article 6.1 of the GDPR, an infringement classified in Article 83.5 a) of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. b) of the LOPDGDD, for the registration of data of minors in the WhatsApp group created by the Town Hall without having demonstrated that such data processing can be based on one of the lawful bases contemplated in the aforementioned Article 6.1 of the GDPR.

- Has infringed the provisions of Article 6.1 of the GDPR, an infringement classified in Article 83.5 a) of the GDPR, qualified as very serious for the purposes of prescription, in Article 72.1. b) of the LOPDGDD, for the processing of personal data of minors under 14 years of age in the registration form, without having demonstrated that such data processing can be based on one of the lawful bases contemplated in the aforementioned Article 6.1 of the GDPR.

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- It has infringed the provisions of Article 6.1 of the GDPR, an infringement classified under Article 83.5 a) of the GDPR, deemed very serious for the purposes of prescription, in Article 72.1. b) of the LOPDGDD, due to the publication of images of young individuals on the website of the City Council without having demonstrated that such data processing can be based on one of the lawful grounds provided for in the aforementioned Article 6.1 of the GDPR.

- It has infringed the provisions of Article 7 of the GDPR, an infringement classified in accordance with Article 83.5 of the GDPR, deemed very serious for the purposes of prescription, in Article 72.1. c) of the LOPDGDD.

- It has infringed the provisions of Article 13 of the GDPR, classified in accordance with Article 83.5 of the GDPR, deemed very serious for the purposes of prescription, in Article 72.1. h) of the LOPDGDD.

- It has infringed the provisions of Article 37 of the GDPR, an infringement classified in accordance with Article 83.4 of the GDPR, deemed serious for the purposes of prescription in Article 73 v) of the LOPDGDD.

SECOND: NOTIFY this resolution to the CITY COUNCIL OF ALGUAZAS.

THIRD: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-101224

Mar España Martí

Director of the Spanish Agency for Data Protection

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